IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
FIRST DISTRICT

Case No. 1D2026-1085

Kelly Kateb,
Nicholas John Kateb (deceased),
Appellants,

v.

City of Palm Bay/Davies Claims North America, Inc.,
Appellees.

Lower Tribunal Case No. 25-012641WWA

BRIEF OF AMICUS CURIAE, FLORIDA PROFESSIONAL FIREFIGHTERS IN SUPPORT OF APPELLANTS' POSITION

Mark A. Touby, Esq.
Florida Bar No. 63088
TOUBY, CHAIT, SMITH & MORA, P.L.
2030 South Douglas Rd., Suite 212
Coral Gables, FL 33134
Telephone: (305) 442-2318
E-Mail: ejcc@fortheworkers.com
Attorney for Amicus Curiae, Florida Professional Firefighters

TABLE OF CONTENTS

Table of Authorities 3

STATEMENT OF THE IDENTITY OF THE AMICUS CURIAE AND INTEREST IN THE CASE 4

SUMMARY OF ARGUMENT 4

ARGUMENT 7

THE IDENTIFICATION, CONCENTRATION AND DURATION REQUIREMENTS OF SECTIONS 440.02(1), 440.151(1)(a), AND 112.1815, FLORIDA STATUTES ARE UNCONSTITUTIONAL, AS APPLIED, AS A DENIAL OF ACCESS TO COURT AS PROVIDED IN ARTICLE I, SECTION 21 OF THE FLORIDA CONSTITUTION. . 7

ACCESS TO COURTS 8

STATUTORY RIGHTS IN EFFECT ON NOVEMBER 5, 1968 10

AMENDMENTS 12

ACCIDENT – 2003 AMENDMENTS 15

OCCUPATIONAL DISEASE – 2003 AMENDMENTS 18

§§440.02(1) AND 440.151(1)(a) AS APPLIED TO §112.1815 20

WESTPHAL - ACCESS TO COURTS 21

CONCLUSION 24

Certificate of Service 25

Certificate of Compliance 25

TABLE OF AUTHORITIES

Cases

City of Titusville v. Taylor, 288 So. 3d 731 (Fla. 1st DCA 2019)	17
Eller v. Shova, 630 So. 2d 537 (Fla. 1993)	9
Kluger v. White, 281 So. 2d 1 (Fla. 1973)	9, 21
Martinez v. Scanlan, 582 So. 2d 1167 (Fla. 1991)	5, 9, 12, 13, 24
Sunset Harbour Condo. Ass'n v. Robbins, 914 So. 2d 925 (Fla. 2005)	7
Westphal v. City of St. Petersburg, 194 So. 3d 311 (Fla. 2016)	9, 16, 21, 23, 24

Statutes and Session Laws

§ 440.02(1), Fla. Stat.	passim
§ 440.151(1)(a), Fla. Stat.	passim
§ 440.151(2), Fla. Stat.	passim
§ 112.1815, Fla. Stat.	passim
§ 440.015, Fla. Stat.	13
§ 440.26, Fla. Stat. (1967)	11, 13
§ 440.56, Fla. Stat. (1967)	5, 11, 12, 14, 15
§ 440.11, Fla. Stat.	15

Other Authorities

Art. I, § 21, Fla. Const.	8, 9

STATEMENT OF THE IDENTITY OF THE AMICUS CURIAE AND INTEREST IN THE CASE

Florida Professional Firefighters (FPF) is a State Association, chartered by the International Association of Fire Fighters, representing the interests of more than 28,000 Firefighters and Emergency Medical Services Personnel, working in nearly 200 departments within various state, county municipal, and special district governments of Florida.

The FPF is interested in this case because the FPF represents an unusual group of Florida workers, firefighters, who are a beneficiary of Florida Statute Section 112.1815 as well as Florida Workers' Compensation Law. This unusual class of workers that the FPF represents work in some of the most hazardous conditions that exist in the workplace and are regularly exposed to unknown substances and conditions while battling fires and performing lifesaving measures wherever the need to do so arises. This enables the organization to give this Court an informed perspective on the effects and impact of the Constitutional question regarding the denial of Access to Courts in this case.

SUMMARY OF ARGUMENT

The tipping point has been reached. The Workers' Compensation Law no longer provides a reasonable alternative for the statutory rights that existed on November 5, 1968 for injuries or diseases caused by toxic substances in the workplace. The 1967 Workers' Compensation Law

provided an adequate remedy for injuries or diseases caused by toxic substances in the workplace and included a presumption that the injury was covered. The injury or disease could alternatively be covered as an occupational disease, though there was no presumption. The 1967 Law also provided Safety Rules and Provisions that required “every employer as defined in s. 440.02 shall furnish employment which shall be safe for the employees therein…” §440.56(1) (1967).

This remedy for a workplace injury or disease due to toxic substances withstood Constitutional scrutiny in *Martinez v. Scanlan*, infra, and remained essentially unchanged until the 1990s. Then, the Legislature diminished it until it no longer exists. The presumption that the injury was covered, was replaced with “Legislative Intent” that there is no presumption.

The Safety Rules and Provisions, which became the Florida Occupation Safety and Health Act, was repealed effective July 1, 2000. This meant that there were no longer standards or enforcement of workplace safety to prevent accidents, including those caused by toxic substances.

In 2003, the Legislature amended §§440.02(1), 440.151(1)(a), and 440.151(2) which eliminated the remedy for injuries or diseases caused by toxic substances in the workplace. The plain language of the statute

creates the presumption that the injury or disease involving a toxic substance is not covered. This is when the tipping point was reached. A remedy that provided for a presumption that the injury or disease caused by toxic substances was covered was eliminated and replaced with a presumption that the injury or disease caused by toxic substances is not covered. There is a theoretical possibility of rebutting the presumption, but only if the injured employee can prove the identification, concentration and duration of the toxic substance involved by clear and convincing evidence. This is not a reasonable alternative to the statutory rights that existed on November 5, 1968 for injuries or diseases caused by toxic substances in the workplace. Because the Legislature has not provided an overpowering public necessity for abolishing this right, the 2003 amendments to §§440.02(1), 440.151(1)(a), and 440.151(2) are unconstitutional as violative of the Access to Courts provision, Article 1, Section 21, of the Florida Constitution.

The Legislature enacted §112.1815 in 2007, which provided a subset of employees with a lesser burden of proof, preponderance of the evidence, but still required the specific proof of the identification, concentration and duration of the toxic substance involved. Decreasing the burden of proof for an abolished remedy has no remedial effect.

This Court should hold that as applied Florida Statutes §§440.02(1), 440.151(1)(a), 440.151(2), 112.1815(2)(a)(1) and 112.1815(2)(b) are unconstitutional denial of the right to Access to Courts and revive the pre-2003 version of the statute.

ARGUMENT

THE IDENTIFICATION, CONCENTRATION AND DURATION REQUIREMENTS OF SECTIONS 440.02(1), 440.151(1)(a), AND 112.1815, FLORIDA STATUTES ARE UNCONSTITUTIONAL, AS APPLIED, AS A DENIAL OF ACCESS TO COURT AS PROVIDED IN ARTICLE I, SECTION 21 OF THE FLORIDA CONSTITUTION.

STANDARD OF REVIEW: A determination concerning the constitutionality of a statute is a question of law reviewed de novo. See *Sunset Harbour Condo. Ass'n v. Robbins*, 914 So. 2d 925 (Fla. 2005).

This Court is the first to consider the Access to Courts challenge as the initial court with subject matter jurisdiction of the issue. The JCC properly exercised restraint by not ruling on the constitutional issue indicating in paragraph 86, footnote 6, "I do not address Mrs. Kateb's as-applied constitutional challenges to these statutes because I have no jurisdiction to declare a statute unconstitutional."

The JCC's conclusion explaining the denial of the claims based entirely on the amended portions of the statutes frames the violation of the Claimant's right to Access to Courts:

> 86. The shortcoming in the evidence, however, is that it does not meet the causation requirement in section 440.151(1) and section 440.1815(2)(a) of sufficient exposure to a specific harmful substance shown to be present at a

> measurable level in Claimant's workplace, not just the workplace of firefighters in general. As that statute states, "Occupational disease" means only a disease for which there are epidemiological studies showing that exposure to the specific substance involved, at the levels to which the employee was exposed, may cause the precise disease sustained by the employee (emphasis added). Mr. Kateb's colon cancer is not an injury by accident because it does not meet the definitional requirements of section 440.02(1), as modified by section 440.1815(2). There is no preponderant evidence establishing the specific levels of Mr. Kateb's exposure to carcinogenic substances. To conclude otherwise would be to indulge in the ecological fallacy of taking a trend found in a large group and wrongly assuming it applies to every individual in that group.

(R. 44-45).

ACCESS TO COURTS

Article I, Section 21, of the Florida Constitution provides:

> Access to courts.—The courts shall be open to every person for redress of any injury, and justice shall be administered without sale, denial or delay.

The amendments to Chapter 440 over time, and specifically in this case as applied to §§440.02(1), 440.151(1)(a) and 112.1815, violate the Access to Courts provision of the Florida Constitution because the system has reached the tipping point where it is no longer a reasonable alternative to the statutory rights that existed on November 5, 1968. The system no longer provides full medical care and wage-loss payments for total or partial disability regardless of fault. The tipping point was reached when the Legislature enacted the 2003 amendment, which diminished the rights of injured workers who suffered an injury or disease by toxic substance

whether it was exposure or an occupational disease, to the point that the right to redress for the injury was abolished.

In *Westphal*, the Court explained:

> But, there must eventually come a "tipping point," where the diminution of benefits becomes so significant as to constitute a denial of benefits—thus creating a constitutional violation. We accordingly must review what has occurred to the workers' compensation system since the 1968 adoption of the access to courts provision, as it relates to providing "full medical care and wage-loss payments for total or partial disability regardless of fault," Martinez, 582 So. 2d at 1172, in order to determine whether we have now reached that constitutional "tipping point."

Westphal v. City of St. Petersburg, 194 So. 3d 311, 323 (Fla. 2016).

> We have now reached that point at which "the claimant's cause of action has been effectively eliminated"—the constitutional "tipping point"

Id. at 325.

In 1973, the Supreme Court of Florida addressed the Access to Courts issue in *Kluger v. White*, explaining that according to Article I, Section 21 of the Florida Constitution, the Legislature may abolish a common law or statutory right in effect as of November 5, 1968, in two instances: (1) where it authorizes a reasonable alternative for the redress of injuries or (2) where it can demonstrate an overpowering public necessity for abolishing such a right. *Eller v. Shova*, 630 So. 2d 537, 542 (Fla. 1993); *Kluger v. White*, 281 So. 2d 1 (Fla. 1973).

In *Kluger*, the Court noted:

> "Workers' compensation abolished the right to sue ones employer in tort for a job related injury, but provided adequate, sufficient, and even preferable safeguards for an employee who

> was injured on the job, thus satisfying one of the exceptions to the rule against abolition of the right to redress for an injury."
>
> *Id.* at 4.

The Court recognized that the 1967 Florida Workers' Compensation Law ("Law") was a statutory right that was a reasonable alternative for redress of injuries. The 1967 Law defined accidents, provided coverage, and provided a presumption that claims were covered. Occupational disease was also covered, but it did not have a presumption in favor of coverage. The Law also had Safety Rules and Provisions that applied to all employers.

STATUTORY RIGHTS IN EFFECT ON NOVEMBER 5, 1968

> In 1967, the Florida Workers' Compensation Law defined "Accident":
>
> "Accident" means only an unexpected or unusual event, or result, happening suddenly…
>
> Fla. Stat. §440.02(19) (1967).
>
> In 1967, the Law provided Coverage:
>
> Compensation shall be payable under this chapter in respect of disability or death of an employee if the disability or death results from an injury arising out of and in the course of employment…
>
> Fla. Stat. §440.09(1967).

The Law provided the Claimant with the presumption that the claim is compensable, absent substantial evidence to the contrary:

> PRESUMPTIONS–In any proceeding for the enforcement of a claim for compensation under this chapter it shall be presumed, in the absence of substantial evidence to the contrary— (1) That the claim comes within the provisions of this chapter.

Fla. Stat. §440.26(1967).

The 1967 Law recognized Occupational disease as an accident:[1]

> Where the employer and employee are subject to the provisions of the workmen's compensation law, the disablement or death of an employee resulting from an occupational disease as hereafter defined shall be treated as the happening of an injury by accident … or, in case of death, unless death follows continuous disability from such disease, commencing with the period above limited, for which compensation has been paid or awarded or timely claim made as provided in this section, and results within 350 weeks after such last exposure.

Fla. Stat. §440.151(1)(a) (1967).

The statute defined occupational disease:

> Whenever used in this section the term "occupational disease" shall be construed to mean only a disease which is due to causes and conditions which are characteristic of and peculiar to a particular trade, occupation, process or employment, and to exclude all ordinary diseases of life to which the general public are exposed.

Fla. Stat. §440.151(2) (1967).

The 1967 Law provided coverage for an employee who had suffered a disease caused by exposure to toxic substances or conditions characteristic to a particular trade or occupation. §440.151(1)(a) (1967).

The 1967 Law also provided Safety Rules and Provisions that applied to "every employer as defined in s. 440.02 shall furnish employment which shall be safe for the employees therein…" §440.56(1), Fla. Stat. (1967). The Florida Industrial Commission was authorized to adopt safety rules,

[1]Occupational diseases did not provide the presumption favoring compensability. §440.151(1)(e) (1967).

enter and inspect places of employment for enforcement purposes, impose fines for violations and obtain injunctions against violators. §440.56(2-8), Fla. Stat. (1967).

These were the statutory rights available to injured workers on November 5, 1968. The amendments that follow eliminated a worker's remedy to secure workers' compensation benefits for injuries or diseases caused by toxic substances at work. The presumption in the 1967 Law that the accident came within provisions of Chapter 440, has become a "rebuttable" presumption that the accident does not come within the provisions of this Chapter. That is not a reasonable alternative. Here is how it happened:

AMENDMENTS

Despite numerous statutory changes[2] between 1967 and 1990 (none of which are implicated here), the Law remained a reasonable alternative to both tort litigation and the statutory rights in effect on November 5, 1968. In 1991, the "constitutional yardstick" was employed by the Supreme Court of Florida in *Martinez v. Scanlan* and the Law still measured up:

> Although Chapter 90-201 undoubtedly reduces benefits to eligible workers, the Workers' Compensation Law remains a reasonable alternative to tort litigation. It continues to provide injured workers with full medical care and wage loss payments

[2]In 1974, Fla. Stat. §440.151(2) was amended and the following language was added: "unless the incidence of the disease is substantially higher in the particular trade, occupation, process, or employment than for the general public." Ch.1974-197, §10, Laws of Fla.

> for total or partial disability regardless of fault and without the delay and uncertainty of tort litigation. . .
>
> *Martinez v. Scanlan*, 582 So. 2d 1167, 1171-1172 (Fla. 1991).

After *Martinez*, the amendments from 1991 to 2022 diminished the ability of employees to receive the remedy for accidents at work resulting from a toxic substance. It starts with the repeal of the presumptions in Fla. Stat. §440.26. Ch. 91-1, §26, Laws of Fla. Instead of the presumption that the injured workers' claim comes within the provision of Chapter 440, the statute was amended to include §440.015 "Legislative Intent" "…it is the intent of the Legislature that the facts in a workers' compensation case are not to be interpreted liberally in favor of either the rights of the injured worker or the rights of the employer." Ch. 91-1, §6, Laws of Fla. This meant that there is a shift from the presumption, that in the absence of substantial evidence to the contrary, the facts would be presumed to provide coverage for the accident under Chapter 440, to no presumption for either party, is a significant reduction in the ability of injured workers to obtain workers' compensation benefits. But it did not stop there.

This section was further amended in 1994 to add, "…and the laws pertaining to workers' compensation are to be construed in accordance with the basic principles of statutory construction and not liberally in favor of either employee or employer." Ch. 93-415, §1, Laws of Fla.

The workers' compensation system, which was to be liberally construed in favor of covering accidents within Chapter 440, lost on the constitutional yardstick measuring whether the workers' compensation statutory scheme continues to provide "adequate, sufficient, and even preferable safeguards for an employee who is injured on the job."

But the 1994 amendments also put in motion the repeal of the workplace Safety Rules and Provisions, another essential provision of Chapter 440 that had been in place since long before the Declaration of Rights. In 1994, §440.56 was transferred to Chapter 442, Fla. Stat. and entitled "Florida Occupational Safety and Health Act". Ch. 93-415, §§52-69, Laws of Fla.; Ch. 93-415, §109, Laws of Fla. The Florida Occupational Safety & Health Act, Ch. 442, Fla. Stat., was repealed effective July 1, 2000. Ch. 99-240, §14, Laws of Fla.

In addition, the repeal of the workplace Safety Rules (later known as Florida Occupational Safety and Health Act) that were integral to the 1967 Law leaves no entity to investigate or regulate the safety of the employment for firefighters, who are exposed to numerous toxic substances while performing their job of saving lives and property. Florida's workplace Safety Rules worked in complement with the federal Occupational Safety and Health Act (OSHA). "The industrial commission should cooperate with the federal government so that duplicate inspections will be avoided yet assure

safe places of employment for the citizens of this state." §440.56(11) (1967). It was not redundant of OSHA. OSHA does not apply to state and local governments. 29 USC §652(5). Firefighters are employees of state and local governments.

Fundamental to the validity of the Law as an alternative to tort remedy was the requirement to provide a safe workplace. Florida employers are immune from suits by their employees for injuries suffered at work. §440.11, Fla. Stat. The REPEAL of this state's Occupational Safety and Health Act has a significant impact on the constitutional yardstick because it means that state and local governments (and small employers) are no longer required to take any action or allocate any resources to prevent accidents. There are no longer any standards, inspections or enforcement to ensure workplace safety. This is the backdrop for what is to come. The true impact of these amendments comes to fruition with the 2003 amendments.

In 2003, the Legislature made significant amendments to §§440.02(1), 440.151(1)(a) and 440.151(2).

ACCIDENT – 2003 AMENDMENTS

Florida Statute §440.02(1) was amended to add:

> An injury or disease caused by exposure to a toxic substance, including, but not limited to, fungus or mold, is not an injury by accident arising out of the employment unless there is clear and convincing evidence establishing that exposure to the specific substance involved, at the levels to which the employee was

exposed, can cause the injury or disease sustained by the employee.

Ch. 2003-412, §1, Laws of Fla.

This is the moment that the tipping point is reached. See *Westphal*, supra. What was previously presumed to be covered is now presumed to not be covered. That is not a reasonable alternative.

The plain language of the statute clearly indicates that the cause of action has been eliminated. “An injury or disease caused by exposure to a toxic substance, including, but not limited to, fungus or mold, is not an injury by accident arising out of the employment…” 440.02(1) (emphasis added). The language is not ambiguous, an injury or disease caused by a toxic substance was previously covered and now it is not – unless. The second part of the sentence continues, “…unless there is clear and convincing evidence establishing that exposure to the specific substance involved, at the levels to which the employee was exposed, can cause the injury or disease sustained by the employee.” *Id.* (emphasis added). While eliminating a cause of action for most injuries or diseases caused by toxic substances, the statute creates an “alleged rebuttable presumption” that provides a micro subset of circumstances that could theoretically qualify for coverage, but only if the injured employee can meet the impossible burden to establish the specific identity, concentration and duration of the

substance. The elimination of the cause of action without a reasonable alternative is a violation of the Access to Courts provision of the Florida Constitution. This Court has previously addressed the plain language of this section in *City of Titusville v. Taylor*:

> The Legislature amended Chapter 440.02(1) to establish a rebuttable presumption that injuries caused by exposure to a toxic substance are not an injury by accident arising out of employment unless certain criteria are met by clear and convincing evidence. The proof required may entail both quantitative and quantifiable standards.
> This Court has and continues to recognize that workers' compensation is a statutory matter and the Legislature has broad discretion in crafting the parameters of benefits due. In reaching this decision, we readily acknowledge the Herculean task created by the heightened burden of proof for toxic exposure claims. However, in deference to the Legislature we will not craft, in derogation of the plain text of sections 440.02(1) and 440.09(1), a lesser burden of proof.
>
> *City of Titusville v. Taylor*, 288 So. 3d 731, 737 (Fla. 1st DCA 2019).

It is not the burden of proof that is the problem. It is the requirement to prove identification, duration and concentration that abolishes the right to recover. As Judge Wolf points out in his concurring opinion, the difficulty with meeting these criteria are because, "[d]irect proof of the level of exposure to the toxic substance is simply not available in a great number of toxic exposure cases." *Id.*

Judge Wolf concluded: "I am, therefore, not convinced that workers' compensation is a viable alternative to the tort system for workers that are injured by toxic exposure at the work place. Either the court system or the

Legislature must deal with this problem." *Id.* It has now been another seven years, and the Legislature has not dealt with this, it is time this Court do so.

OCCUPATIONAL DISEASE – 2003 AMENDMENTS

In 2003, §440.151(1)(a) was amended as follows (underline is insertion; strikethrough is deletion):

> (1)(a) Where the employer and employee are subject to the provisions of the Workers' Compensation Law, the disablement or death of an employee resulting from an occupational disease as hereinafter defined shall be treated as the happening of an injury by accident, notwithstanding any other provisions of this chapter, and the employee or, in case of death, the employee's dependents shall be entitled to compensation as provided by this chapter, except as hereinafter otherwise provided; and the practice and procedure prescribed by this chapter shall apply to all proceedings under this section, except as hereinafter otherwise provided. Provided, however, that in no case shall an employer be liable for compensation under the provisions of this section unless such disease has resulted from the nature of the employment in which the employee was engaged under such employer, and was actually contracted while so engaged, and the nature of the employment was the major contributing cause of the disease. Major contributing cause must be shown by medical evidence only, as demonstrated by physical examination findings and diagnostic testing. meaning by "Nature of the employment" means that in to the occupation in which the employee was so engaged there is attached a particular hazard of such disease that distinguishes it from the usual run of occupations, or the incidence of such disease is substantially higher in the occupation in which the employee was so engaged than in the usual run of occupations. In claims for death under s. 440.16, death must occur or, in case of death, unless death follows continuous disability from such disease, commencing within the period above limited, for which compensation has been paid or awarded, or timely claim made as provided in this section, and results within 350 weeks after such last exposure. Both causation and sufficient exposure to a specific harmful substance shown to be present in the workplace to support causation shall be proven by clear and convincing evidence.
>
> Ch. 2003-412, §19, Laws of Fla.

In this amendment, in addition to raising the burden of proof to major contributing cause that the nature of the employment was the cause, the Legislature has imposed an additional burden of proving causation AND sufficient exposure to a SPECIFIC harmful substance by CLEAR AND CONVINCING evidence. This is the same problem described above with the identification, duration and concentration that require proof that is impracticable, impossible or nonexistent. Does he have to stop fighting the fire and take samples of the chemicals to secure evidence necessary to prove what will cause him to die from cancer?

Florida Statute §440.151(2) was amended to add, "'Occupational disease' means only a disease for which there are epidemiological studies showing that exposure to the specific substance involved, at the levels to which the employee was exposed, may cause the precise disease sustained by the employee." Ch. 2003-412, §19, Law of Fla. The remedy of a firefighter or any other employee who suffered an injury or disease from a toxic substance had been eliminated. The elimination of the remedy without an alternative or an overpowering public necessity is a denial of Access to Courts.

The problem lingered and the Legislature attempted to address it again in 2007 by enacting §112.1815.

§§440.02(1) AND 440.151(1)(a) AS APPLIED TO §112.1815

In 2007 the Legislature enacted §112.1815. "The Legislature finds that this act fulfills an important state interest relating to the public interest in prompt and adequate response to provide for the safety of the public unique to this class of state and local government employees." Ch. 2007-87, §2, Laws of Fla. The Legislature attempted to address the higher burdens of proof in §§440.02(1) and 440.151(1)(a) by decreasing them as it relates to firefighters:[3]

> (2)(a) For the purpose of determining benefits under this section relating to employment-related accidents and injuries of first responders, the following shall apply:
>
> 1. An injury or disease caused by the exposure to a toxic substance is not an injury by accident arising out of employment unless there is a preponderance of the evidence establishing that exposure to the specific substance involved, at the levels to which the first responder was exposed, can cause the injury or disease sustained by the employee.
>
> (b) In cases involving occupational disease, both causation and sufficient exposure to a specific harmful substance shown to be present in the workplace to support causation shall be proven by a preponderance of the evidence.
>
> Ch. 2007-87, §1, Laws of Fla. (emphasis added).

However, even with the lower burdens of proof that are available to this specific subset of employees, which includes firefighters, the identification of the specific substance and the levels (duration and

[3]Like all other employees covered by 112.1815, Fla. Stat. (2007) exposed, can cause the injury or disease sustained by the employee.

concentration) still prevent the benefits from being achievable which denies redress for the injury and is a denial of Access to Courts.

The Legislature did not include the additional requirements of having to prove that the condition would satisfy any additional burden in the definition of Occupational Disease. Cf. 440.151(2) (2003).

WESTPHAL - ACCESS TO COURTS

To determine that Florida Statute §§440.02(1) and 440.151(1)(a) as applied to §112.1815, deny the Claimant's right to Access to Courts, the Kluger or "reasonable alternative" test is the appropriate standard as confirmed by *Westphal*:

> The 104-week limitation on temporary total disability benefits and the statutory gap must therefore be viewed through the analytical paradigm of Kluger, asking whether the workers' compensation law continues to provide adequate and sufficient safeguards for the injured worker and thus constitutes a constitutional, reasonable alternative to tort litigation. Kluger, 281 So. 2d at 4. The "reasonable alternative" test is then the linchpin and measuring stick, and this Court has undoubtedly upheld as constitutional many limitations on workers' compensation benefits as benefits have progressively been reduced over the years and the statutory scheme changed to the detriment of the injured worker.
>
> *Westphal*, 194 So. 3d at 323.

The evidence presented by the Appellants was that the decedent firefighter was employed in an occupation known to have exposed him to conditions and causes of the disease (cancer) he contracted which led to his death. (IB. p.27-28). Under the 1967 Law, he would have been covered for his claim as either an accident, with presumptions, or as an

occupational disease, without the presumptions. But after the 2003 amendments, he can't meet his burden of proof for either one, let alone prevail in the claim. The plain language of the amendments eliminated coverage for these claims that would have been covered in 1967. No benefits is not a reasonable alternative for full benefits.

The denial of Access to Courts is even more apparent when §§440.02(1) and 440.151(1)(a) are applied to §112.1815, which maintains the same requirements of identity, concentration and duration but with lowered burdens of proof and removal of other limiting provisions. This "scaled down" version is unconstitutional as applied to these facts because it has eliminated a cause of action such that the workers' compensation law is no longer a reasonable alternative to the law as it existed on November 5, 1968, and the Legislature has neither provided a reasonable alternative nor an overwhelming public necessity for having extinguished the cause of action.

The Legislature, in reducing the evidentiary burden to a preponderance of the evidence, does not resolve the denial of Access to Courts. The presumption that the injury or disease is not covered is the violation. A rebuttable presumption, that no one can rebut, is not a reasonable alternative to the Workers' Compensation Law as it was in

1968. There is no cause of action even with the reduced burden because there is no remedy for injuries or diseases caused by toxic substances.

For occupational diseases, the firefighters, paramedics, emergency medical technicians, and law enforcement officers do not have the onerous definition of occupational disease as set out in 440.151(2) but nevertheless cannot meet the criteria and prove “both causation and sufficient exposure to a specific harmful substance shown to be present in the workplace to support causation”.

Further, Florida’s Occupational Safety & Health Act cannot be used to counterbalance the elimination of the remedy for firefighters who have suffered from exposure to toxic substances and occupational diseases in the 2003 amendments. It has been repealed.

Under the current law, Fla. Stat. 440.02(1), 440.151, 112.1815, any remedy for a cause of action for an injury or disease resulting from a toxic substance has been eliminated without a reasonable alternative or an overwhelming public necessity for abolishing it.

That is not what the people of the state of Florida knew to be the law when they voted for the “Declaration of Rights of the Constitution of the State of Florida”.

The remedy here, as it was in *Westphal*, is statutory revival (go back to the previous law):

> Accordingly, we hold that the statute as written by the Legislature is unconstitutional. However, we conclude that this unconstitutional limitation on temporary total disability benefits does not render the entire workers' compensation system invalid. Rather, we employ the remedy of statutory revival and direct that the limitation in the workers' compensation law preceding the 1994 amendments to section 440.15(2)(a) is revived, which provides for temporary total disability benefits not to exceed 260 weeks—five years of eligibility rather than only two years, a limitation we previously held "passes constitutional muster." *Martinez*, 582 So. 2d at 1172.
>
> *Westphal*, 194 So. 3d at 315.

CONCLUSION

The Court should hold that as applied Florida Statutes §§440.02(1), 440.151(1)(a) and 440.151(2) are an unconstitutional denial of the right to Access to Courts and revive the pre-2003 version of the §§440.02(1), 440.151(1)(a) and 440.151(2). In addition, the Court should hold that as applied Florida Statutes §§112.1815(2)(a)(1) and 112.1815(2)(b) are unconstitutional denial of the right to Access to Courts.

/s/ Mark A. Touby
Florida Bar No. 63088
MARK A. TOUBY, ESQ.
TOUBY, CHAIT, SMITH & MORA, P.L.
2030 S. Douglas Rd., Suite 212
Coral Gables, Florida 33134
Telephone: (305) 442-2318
E-Mail: ejcc@fortheworkers.com
Florida Bar No. 63088
Attorney for Amicus Curiae, FPF

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy hereof has been furnished to: Megan O. Danner, Esq. (moliva@bichlerlaw.com) and Karen Cullen, Esq. (karenc@bcdorlando.com) by Florida Courts e-filing Portal on the 10th day of September, 2026.

/s/ Mark A. Touby
Florida Bar No. 63088
MARK A. TOUBY, ESQ.
TOUBY, CHAIT, SMITH & MORA, P.L.
2030 S. Douglas Rd., Suite 212
Coral Gables, Florida 33134
Telephone: (305) 442-2318
E-Mail: ejcc@fortheworkers.com
Florida Bar No. 63088
Attorney for Amicus Curiae, FPF

CERTIFICATE OF COMPLIANCE

I certify that this document complies with the font requirements of Florida Rule of Appellate Procedure 9.045(b) (Arial 14-point) and with the word count limit of the applicable rule, and that it contains _____ words, excluding the caption, cover page, table of contents, table of citations, certificate of compliance, certificate of service and signature block, as Rule 9.045(e) provides.

/s/ Mark A. Touby
Florida Bar No. 63088

MARK A. TOUBY, ESQ.
TOUBY, CHAIT, SMITH & MORA, P.L.
2030 S. Douglas Rd., Suite 212
Coral Gables, Florida 33134
Telephone: (305) 442-2318
E-Mail: ejcc@fortheworkers.com
Florida Bar No. 63088
Attorney for Amicus Curiae, FPF